

1.

CASE #	CASE NAME	HEARING NAME
CVRI2506376	FLORES, VS SELENE FINANCE LP	MOTION TO COMPEL PLAINTIFF'S RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENT, SET ONE, AND PRODUCTION OF DOCUMENTS
		MOTION TO COMPEL PLAINTIFF'S RESPONSES TO SPECIAL INTERROGATORIES, SET ONE
		MOTION TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATORIES, SET ONE
		MOTION DEFENDANT SELENE FINANCE LP'S MOTION TO ESTABLISH ADMISSIONS AGAINST PLAINTIFF

Tentative Ruling:

Code of Civil Procedure sections 2030.290(b) and 2031.300(b) allow the propounding party to file a motion to compel responses to interrogatories and document demands if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a), 2031.300(a).)

Here, Defendant asserts no responses were provided for requests for production. Defendant shows the responses to the special interrogatories are blank. Accordingly, the motions are granted. For form interrogatories, Defendant concedes Plaintiff provided responses (although the verifications are oddly dated). The motion is moot for form interrogatories.

For requests for admissions, failure to respond permits the propounding party to move for an order deeming the admissions admitted. (Code Civ. Proc. § 2033.280.) The court shall grant the motion “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response...in substantial compliance with Section 2033.220.” (*Id.* at § 2033.280(c).) For requests for admission, they are taken in totality of the proposed response, rather than each individual response. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 782.) Here, Plaintiff provided responses. The motion is moot as to requests for admissions.

For interrogatories and requests for production, sections 2030.290(c) and 2031.300(c) provide that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Sanctions are mandatory for requests for admissions. (Civ. Proc. Code, § 2033.280(c).)

Here, Plaintiff provides no explanation for the delay in providing some responses. Defendant requests \$2,510 per motion (\$410 x 6 hours + \$50 expenses). As the motions are identical, the court awards \$410 per motion (1 hour x \$410).

The motion is granted as to special interrogatories and requests for production. Motion is moot as to form interrogatories and requests for admissions. Plaintiff is sanctioned a lesser amount of \$410 per motion (x4).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2603479	LAURENCE-HOVENIER, INC. VS SUPPLY PATRIOT, INC.	HEARING ON RIGHT TO ATTACH ORDER AND FOR ISSUANCE OF WRIT OF ATTACHMENT

Tentative Ruling:

An attachment is a provisional remedy to aid in the collection of money by seizure of property in advance of trial and judgment. (*Kemp Bros. Const., Inc. v. Titan Elec. Corp.* (2007) 146 Cal.App.4th 1474, 1476.) It creates a judicial lien on the debtor’s attachable property and protects the plaintiff’s priority. (Ahart, *California Practice Guide: Enforcing Judgments and Debts* § 4:3 (Rutter Group 2026).)

An attachment may be issued only if the claim sued upon meets the following requirements: (1) a “claim for money ... based upon a contract, express or implied”; (2) of a “fixed or readily ascertainable amount not less than \$500”; (3) that is either unsecured or secured by personal property; and (4) that is a commercial claim. (Code Civ. Proc., § 483.010; *Goldstein v. Barak Const.* (2008) 164 Cal.App.4th 845, 852.) To obtain a right to attach order, the plaintiff has the burden of proving (1) that the claim is one on which an attachment may be issued pursuant to Code of Civil Procedure section 483.010; (2) the probable validity of such claim; and (3) that the attachment is not sought for any purpose other than to secure recovery on the claim. (Code. Civ. Proc., § 484.090.) “Probable validity” is established when “it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (*Id.* at § 481.190.) “The legality of the attachment must be determined from the pleadings, proceedings and entire record in the attachment suit to ascertain therefrom what, in fact, the real grievance is for which relief is sought.” (*Stowe v. Matson* (1949) 94 Cal.App.2d 678, 682.) A plaintiff must establish a prima facie case. (*Pech v. Morgan* (2021) 61 Cal.App.5th 841, 854.) When opposed, the court must “consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (*Id.* at 855.)